

The U.P. Economizer Rules, 1959

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State of Uttar Pradesh - Act

The U.P. Economizer Rules, 1959

UTTAR PRADESH

India

The U.P. Economizer Rules, 1959

Rule THE-U-P-ECONOMIZER-RULES-1959 of 1959

Published on 1 January 1959

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The U.P. Economizer Rules, 1959

Chapter I

Preliminary

1.

Short title.

- These rules may be called the U.P. Economizer Rules, 1959, and shall come into force with effect from the date of publication in the U.P.Gazette.

2.

Definitions.

- In these rules unless the context otherwise requires,-

(a)

"Act" means the Indian Boilers Act, 1923 (V of 1923);

(b)

"Section" means a section of the Act;

(c)

"Regulation" means the Indian Boilers Regulations, 1950 made by the Central Boilers Board under section 28;

(d)

"Accident" means an explosion of an economizer or connecting pipe which is calculated to weaken the strength thereof as to render it liable to explode.;

3.

Payment of fees, etc.

- All fees payable under these rules or under the Act by (1) the private payer, and (2) on behalf of the Government up to rupees one hundred, shall be deposited in the Government treasury or the State Bank of India, under the head "XXXVI-Miscellaneous Departments Miscellaneous-Provincial Fee for inspection of Steam Economizers".

Fees above rupees one hundred for Government Economizer shall be adjusted by book debit. Application under sections 7 and 8 of the Act, to which the treasury or bank receipt for payment is affixed and for which payment will be made by book adjustment, shall be deemed to be accompanied by the prescribed fee.

Note. - Applications for the registration or inspection of Economizers should be sent on Form CE to the Chief Inspector of Boilers.

Uttar Pradesh, Kanpur, accompanied with a treasury or Bank receipt for the amount of the prescribed fee. Form CE can be obtained from the Superintendent, Printing and Stationery, Uttar Pradesh, Allahabad on pre-payment. Fees of over rupees one hundred for Government Economizers shall be adjusted by book transfer and the fact should be endorsed on applications.

4.

Registers.

(1)

The Chief Inspector shall maintain in his office-

(a)

a register in Form AE of all economizers registered in the State;

(b)

the Registration Books and Memorandum of Inspection Books in respect of all economizers booked in such register;

(c)

a Register of appeals;

(d)

a Register of accidents; and

(e)

a Register of fees received for registration and for the issue of renewed Certificate.

(2)

The register maintained under clause (a) of sub-rule (1) shall consist of two parts. In Part I shall be entered the economizers registered in the State and in Part II shall be entered the economizers transferred from another State.

Chapter II

Procedure for Registration

5.

Receipt of applications.

- An application for registration under sub-section (1) of section 7 shall be made to the Inspector of the local area in which the economizer is situated and shall be accompanied by a receipt of the fee prescribed under the Regulation.

6.

Procedure on transfer of an economizer unit or part of unit.

- When an economizer is transferred from another State into the State of Uttar Pradesh the owner shall apply in Form CE under clause (b) of the transfer; the economizer shall not be used until registration has been effected. No fee shall be charged for recording such transfer.

7.

Entry of transferred economizer unit in Register.

(1)

On receipt of the Registration and Memorandum of Inspection Books, the Chief Inspector shall enter the economizer unit under its original number in Part II of the Register kept for the purpose.

(2)

When parts of two or more units are assembled to form one unit, the original numbers shall be cancelled and the newly built by unit shall be given a fresh number.

8.

Note of transferred and dismantled economizers.

- Whenever an economizers or part of an economizer has been transferred to another State or broken up, the fact shall be noted in the register. In the case of an economizer which has been condemned, the Registration Book and the Memorandum of Inspection Book shall contain an entry to that effect.

9.

Entries in Certificates.

- In addition to the entries requires to be made under Regulation 503 in a certificate for an economizer, the Inspector shall state in the remarks column his requirements, if any, with regard to hydraulic test, removal of lagging brickwork or other concealing parts for the next inspection to enable the owner to have the same properly prepared at that time. He shall also state in the same place his requirements regarding the repair or renewal of any part that may be considered fit only for the period of the certificate.

In the repairs column shall be entered the year of repair and description of repair affected. Only important repairs shall be noted.

10.

Engraving or registry number.

- Paper slips of the proper size bearing the registry number allotted for the economizer shall be supplied by the Chief Inspector. The engraving of the registry number shall be made as prescribed in Regulation No. 534.

11.

Issue of Certificate and Provisional Order.

- In cases in which the Inspector is empowered to issue a certificate under section 8 without further reference, the certificate shall ordinarily be issued within 48 hours of the completion of the inspection. Where he proposes to issues a provisional order pending the issue or refusal to issue certificate, the Inspector must satisfy himself that the economizer is fit to be worked at the maximum pressure and for the period entered in the provisional order. The fact of the issue of a provisional order must be reported immediately to the Chief Inspector.

12.

Forms of Provisional order and Certificates.

- Provisional orders and certificates are prescribed in Forms X and XI respectively of the Regulations.

The period specified in any provisional order or certificate shall begin on the day on which the thorough inspection or hydraulic test is completed. Where a certificate supersedes a provisional order during the period of its currency, the period of the certificate shall be retrospective and shall be deemed to be beginning on the date on which the period of the provisional order began.

13.

Duplicate Certificate.

- A duplicate of any certificate granted under section 7 or section 8, which for the time being is in force shall be granted by the Chief Inspector on the application of the owner of the economizer if the Chief Inspector is satisfied that the duplicate is required for a bona fide purpose.

14.

[Fees for Inspection.

[Substituted by Notification No. 2512/XXXVI - 3-1(B)-89, dated 18th August, 1992, published in U.P. Gazette (Extra.), Part 4, Section (kha), dated 18th August, 1992.]

- Fees for inspection shall be calculated on the basis of economiser rating as shown below-

Rs. P.

For Economiser rating not exceeding 50 square metres

100.00

For Economiser rating exceeding 50 square metres but not exceeding 100 square metres.

120.00

For Economiser rating exceeding 100 square metres but not exceeding 150 square metres.

140.00

For Economiser rating exceeding 150 square metres but not exceeding 200 square metres.

160.00

For Economiser rating exceeding 200 square metres but not exceeding 250 square metres.

180.00

For Economiser rating exceeding 250 square metres but not exceeding 300 square metres.

190.00

For Economiser rating exceeding 300 square metres but not exceeding 350 square metres.

200.00

For Economiser rating exceeding 350 square metres but not exceeding 400 square metres.

220.00

For Economiser rating exceeding 400 square metres but not exceeding 450 square metres.

240.00

For Economiser rating exceeding 450 square metres but not exceeding 500 square metres.

260.00

For Economiser rating exceeding 500 square metres but not exceeding 600 square metres.

280.00

For Economiser rating exceeding 600 square metres but not exceeding 700 square metres.

300.00

For Economiser rating exceeding 700 square metres but not exceeding 800 square metres.

320.00

For Economiser rating exceeding 800 square metres but not exceeding 900 square metres.

340.00

For Economiser rating exceeding 900 square metres but not exceeding 1000 square metres.

360.00

Above 1000 square metres for every 200 square metres or part thereof an additional fee of Rs. 20.00 shall be charged: Provided that when any owner is willing to accept a renewed certificate for less than 24 months in order to approximate the date of annual inspection to the date of which other economies in the locality are inspected a certificate for such periods being less than 24 months as may be necessary for such approximation of dates may be granted at a reduced fee to be calculated at one-twenty-fourth of the ordinary fee for each full month, fraction of a month not being reckoned.]

15.

[Fee for inspection out of four month.

[Substituted by Notification No. 2512/XXXVI - 3-1(B)-89, dated 18th August, 1992, published in U.P. Gazelle, (Extra),

Part 4, Section (kha), dated 18th August, 1992.]

- Fees payable for inspection made by an Inspector otherwise than on tour shall be the amount as mentioned in Rule 14 with halting charges at the rate of Rs. 50.00 per day plus travelling expenses which will vary according to the distance from Kanpur to the nearest railway station of the Economiser site and will be as under:]

Kilometres from Kanpur

Rs. P.

1 to 100 Km.

100.00

Any additional 50 Km. or a part thereof.

50.00

Explanation. - In this rule the words on tour means the tour to be observed in accordance with programme mentioned below:-

Months

Districts in which the tour to be observed

January

Lucknow, Sonbhadra and Kanpur Nagar.

February

Sultanpur, Pratapgarh, Unnao, Mirzapur, Rae Bareilly, Kanpur

Dehat and Kanpur Nagar.

March

Jhansi, Hamirpur, Jalaun, Ghazipur, Lalitpur and Kanpur

Nagar.

April

Varanasi, Azamgarh, Faizabad, Farrukhabad, Mathura, Mau and

Kanpur Nagar.

May

Etawah, Fatehpur, Jaunpur, Moradabad and Kanpur Nagar.

June

Gonda, Bahraich, Basti, Bijnore, Budaun, Aligarh, Siddharth

Nagar and Kanpur Nagar.

July

Saharanpur, Bara Banki, Meerut, Hardoi, Sitapur, Ghaziabad,

Haridwar and Kanpur Nagar.

August

Bulandshahr, Etah, Agra, Rampur, Shahjahanpur, Firozabad and

Kanpur Nagar.

September

Gorakhpur, Deoria, Ballia, Mahrajganj, Mainpuri and Kanpur

Nagar.

October

Banda, Bareilly, Pilibhit, Lakhimpur Kheri, Muzaffarnagar and

Kanpur Nagar.

November

Allahabad, Naini Tal, Almora, Pithoragarh and Kanpur Nagar.

December

Dehra Dun, Garhwal, Tehri-Garhwal, Chamoli, Uttar Kashi and

Kanpur Nagar.

Provided that in the case of-

(a)

Economisers belonging to the military the inspections in the months of January, February, November and December shall be taken as the inspections on tour;

(b)

Sugar Factory Economisers the inspections during the months from June to October shall be taken as the inspection on tour:

Provided that if any owner communicates in writing to the Chief Inspector of Boilers, U.P., Kanpur, his selection of the tour months out of the months mentioned above, in which he desires to get his Economiser inspected, will be taken as the inspection on tour in his case.

15A.

Fee for copy of Registration Book.

- Fee for a copy of registration book containing only particulars and dimensions of the economisers shall be Rs. 25.00 while issuing copies of registration books copies of official inspection notes shall not be furnished.

15B.

Fee for duplicate certificate.

- A duplicate certificate for a bona fide purposes may be issued to the owner of an economiser under the order of the Chief Inspector of Boilers on receipt of a fee of Rs. 10.00]

16.

Refund of fees.

- Fees paid in excess and fees paid for an inspection which for any reason not due to any fault or omission on the part of the owner of the economizer has not been made, shall be refunded or adjusted if applied for within one year from the date of payment.

Chapter III

Accident

17.

Investigation of accidents.

- On the receipt of a report of an accident to an economizer or feed-pipe under section 18, the Inspector shall with the least possible delay, proceed to the place to investigate the accident. If the report is received by the Chief Inspector he shall forward it at once to the Inspector within whose jurisdiction the accident had occurred for necessary action.

18.

Procedure during Inquiry.

- The Inspector at his inquiry shall make a careful examination of the damaged parts, and shall take such measurements and make such sketches for the purpose of his report, as he may deem necessary. He shall inquire into the circumstances attending the accident and note the time of its occurrence its nature and extents, the injury caused to persons and the damage done to the property. The report shall be in Form D-E and shall be sent forthwith to the Chief Inspector. If the Chief Inspector considers that the investigation has been sufficient he will record the facts in the Register of accidents and enter a brief account of the accident in the Registration Book, a copy being made in the Memorandum of Inspection Book. If, however, the accident is of a serious nature and in all cases in which an explosion occurred, the Chief Inspector shall, after receipt of the Inspector's report, proceed to investigate the accident personally.

19.

Power to hold inquiry in writing.

- Inspectors are authorized to take the written statements of witnesses and all persons immediately concerned with the accident. In order to comply with the provisions of sub-section (2) of Section 18, the Inspector shall present to the owner or person in charge of the economizer a series of written questions on all points that are material to the inquiry.

20.

Use of economizer after accident.

- The Inspector shall decide whether the use of the economizer can be permitted at the same or at a lower pressure without repairs or pending the completion of any repairs or alterations that he may order. In no case shall a provisional order or renewal certificate be issued until his orders have been carried out.

21.

Reference in Annual Report.

- A brief account of all accidents, their causes and remedial measures taken shall be included in the Chief Inspector's Annual Report.

22.

Unreported accidents.

- If in the course of an inspection or at any other time, the Inspector discovers damage which comes within the definition of an accident, but which has been reported he shall report the fact at once to the Chief Inspector for such action as he deems fit.

Chapter IV

Appeal

23.

Filing of appeals.

- Every appeal shall be made in writing either in English or in Hindi written in Devanagari script.

24.

Presentation of appeal.

- An appeal may be presented either personally or sent by registered post by the Chief Inspector.

25.

Form of appeal.

- A petition of appeal shall be accompanied by the original order, notice or report appealed against, or by a certified copy thereof or where no such order, notice or report has been made in writing, by a clear statement of the facts appealed against the grounds of appeal and section under which the appeal is made.

26.

Fixing date for hearing.

- On receipt of a petition of appeal, the Chief Inspector, shall, if the appeal is to be heard by himself at once fix a date for hearing the appeal and if it is to be heard by the appellate authority constituted by the State Government under section 20 obtain a date for the hearing of the appeal from that authority.

27.

Procedure before hearing.

- When the date for hearing has been fixed, the Chief Inspector shall at once issue a notice to the appellant stating the date for hearing and informing him that if he wishes to be heard in support of the appeal or to produce evidence he must be present either in person or by authorized agent with his evidence on the date fixed. The notice shall be sent by registered post to such address as is entered in the petition of appeal.

28.

Presence of Inspector.

(a)

In an appeal to the Chief Inspector he shall decide whether the presence of the Inspector is necessary and shall issue orders accordingly.

(b)

Attendance during hearing of appeals. Under orders of the Chief Inspector, an Inspector shall attend before the Chief Inspector of the Appellate Authority, during the hearing of an appeal with regard to an economizer under his charge.

29.

Attendance of witnesses.

- The appellate authority shall have power to secure the attendance of witnesses and to make local inquiries and for this purpose shall exercise the powers of a court under the provisions of the Code of Civil Procedure, 1908 (Act V of 1908).

30.

Ex parte decision.

- In any appeal, if the appellant is not present on the date fixed the appeal may be decided in his absence.

31.

Constitution of Appellate Authority.

(1)

The appellate authority means the appellate authority constituted by the State Government under section 20.

(2)

The State Government shall appoint a person who has exercised the powers of a District Judge or a District Magistrate to be in appellate authority for such period as it may deem fit.

32.

Panel of Assessors.

- The State Government shall constitute a panel of assessors for the purpose of assisting the appellate authority in the hearing of appeals. Such assessors shall be fully qualified Mechanical Engineers.

33.

Remuneration of assessors.

- An assessors when elected to assist the appellate authority shall be paid-

(a)

such fees as the State Government may from time to time, determine, and

(b)

subject to the orders issued by the State Governments in this behalf the travelling expenses actually incurred by him for attending an enquiry under these rules.

34.

Attendance of assessors.

- Where a date for an appeal before the appellate authority has been fixed the Chief Inspector shall under the orders of such appellate authority arrange for the attendance of at least two members of the panel of assessors to act as assessors.

35.

Costs in appeals.

(1)

Where an appeal is dismissed the appellate authority may fix the costs of the appeal which shall be payable by the appellant.

(2)

In any appeal where a local inspection is required the appellant shall deposit in advance the full costs of such inspection as determined by the appellate authority.

36.

Penalty.

- Any contravention of these rules shall be punishable with fine which may extend to one hundred rupees.

Form AE

Economizer Inspection Department

Registration Of Economizers

(Rules 4 and 8)

1

2

3

4

5

6

7

8

9

Registry No.

Type of Economiser

Economiser relating

Name of Manufacturer

Year and place of construction

Date of registration

Name of owner

Place where in use

Remarks (transfers, etc.)

(Obverse)

Form BE

Indian Boilers Act, 1923 (Act V of 1923)

Notice For Examination of Economizers Under Sections 7 and 8

No.....of 19

Boilers Inspectorate

Dated.....the.....19

To,

.....
.....
.....

Gentlemen/Sir

In reply to your application, dated.....you are hereby informed that Economizer Registry No. at the abovenamed premises will be Thoroughly examined. -----
by the Government Inspector on the Hydraulically tested to enable the examination to be made, you are bound-

(a)

to afford to the Inspector all reasonable facilities for the examination and all such information as may reasonably be required for you;

(b)

to have the economizer properly prepared and ready for examination in the prescribed manner; and

(c)

in the case of an application for the registration of an economizer to provide such drawings specifications, certificate and other particulars as may be prescribed.

Voucher no.....in acknowledgment of Bank/Treasury Receipt No.....for Rs.....accompanies.

Yours faithfully,

Inspector of Boilers.....State.

(See Reverse for preparation required).

(Reverse)

Preparation for examination

(a)

Preparation for Inspection

At each inspection the economiser shall be emptied and thoroughly cleaned internally and externally in the flues, except in the case of a welded tube economizer directly connected to the boiler drum where internal cleaning is not practicable. All mountings shall be opened up and caps removed to permit adequate inspection.

Provisions, shall, if required by the Inspector, be made for the removal of casting or brickwork or either concealing part and for drilling of headers and tubes and for verifying the pressure gauge and relief valve dimensions and weights. All tubes headers and flues ways shall be swept clean.

Proper provisions shall be made to isolate the economizer on the gas side as well as on the water connections of the boiler and from any other working economizer.

(b)

Preparation/or Hydraulic Test

The chest of all mountings subject to water pressure shall be in place and shut tight or blank flanged. The relief valve shall either be secured or removed and the chest opening blank flanged. The [attachment]

[Tapped 3/4' Witworth bolt and nut thread.]

for the Inspector's pressure gauge and the [nipple]

[Tapped 7/8' Witworth bolt and nut thread.]

for connecting the Inspector's test pump hose shall be in order. All caps shall be properly fitted and tightened up. The economiser shall be completely filled with water, care being taken to allow all air to escape and if possible a preliminary test not exceeding the working pressure of the economiser shall be taken before the Inspector's visit to test the tightness of the joints. When an economiser is hydraulically tested for the first time, it shall be offered entirely bare, at subsequent test, lagging or brick work, or portions thereof, shall be removed if required by the Inspector.

Note. - The last certificate for the economizer should be shown to the Inspector.

Preparation now required (a) and (b)

Form CE

Uttar Pradesh Economizers Inspection Department

(Rules 5 and 8)

T.R. FILED

[No.....dated.....19]

[These entries will be made by Boiler Inspector's Office.]

[Economiser Registered on Certificate No.....19]

[Only one economiser should be put down in each application form.]

Application for the registration - Inspection or transfer of an economiser

[Under Act V of 1923 (Indian Boilers Act)].

Dispensioned drawing and certificates of test vide Regulation 501 should be sent along with an application for the registration of an economiser:

Economiser

Treasury receipt

Treasury receipt_____

Economiser_____

Registry No. engraved on Economiser

Description,

Economiser rating (see reverse)

Name of owner or company

Where situate nearest convenient railway station

and its distance

Date desired for inspection and period for which

certificate is required

Description of work carried on

Name of treasury

No. and date of receipt

Amount deposited

Remarks

Date of expiry

In the case of a transfer required for an economiser imported into the State, the following particulars are to be given in addition to the above:

(i)

Name and full address of persons or firm from..... whom the economiser has been purchased.....

(ii)

Name and full address of owner to whom..... last certificate was granted.

(iii)

The certificate or provisional order now in..... force under which the economiser was..... being worked.

I hereby apply to the Chief Inspector of Boilers, Uttar Pradesh, Kanpur, for the Registration/Inspection/Transfers (cross out which does not apply) and the grant of a certificate for the economiser abovenamed for which the requisite fee has been credited into the Government treasury, and receipt enclosed herewith.

Dated of.....

.....

Signature of Owner or Agent.

The

.....date of.....19

(Reserve)

Fees for the registration and inspection of Economisers are calculated on the basis of Economiser Rating as prescribed in Regulation No.533 of the Indian Boiler Regulations, 1950 and rule 18 (b) of the U.P. Economisers Rules, 1956, made under the Indian Boilers Act, 1923.

Economiser rating is the number of square feet of heating surface of the Economiser.

Fee for registration and inspection. These shall be calculated on the basis of Economiser rating as shown below:

Inspection

Regn.

For Economiser rating not exceeding 500

40

50

For Economiser rating exceeding 500 but not exceeding 1,000

50

60

For Economiser rating exceeding 1,000 but not exceeding 1,500

60

70

For Economiser rating exceeding 1,500 but not exceeding 2,000

70

80

For Economiser rating exceeding 2,000 but not exceeding 2,500

80

90

For Economiser rating exceeding 2,500 but not exceeding 3,000

90

100

For Economiser rating exceeding 3,000 but not exceeding 3,500

100

110

For Economiser rating exceeding 3,500 but not exceeding 4,000

110

120

For Economiser rating exceeding 4,000 but not exceeding 4,500

120

130

For Economiser rating exceeding 4,500 but not exceeding 5,000

130

140

For Economiser rating exceeding 5,000

140

150

Form DE

Report into the investigation of the Accident to Economiser No.

To

The Chief Inspector of Boilers

Sir,

In accordance with instructions, I have held a preliminary inquiry into the accident and the circumstances attending it, to Economiser no.....and now make the following report:

(1)

Date and place of accident

.....

(2)

Date of investigation

.....

(3)

Name and address of owners

.....

(4)

Persons killed or injured

.....

(5)

Name of makers of Economiser or Steam Pipe

.....

(6)

Age of Economizer or Steam Pipe

.....

(7)

Particulars of previous repairs with dates

.....

(8)

The Economizer was last inspected on by

.....

(9)

Nature of accident

.....

(10)

Cause of accident

.....

(11)

General remarks

.....

Dated

Inspector of Boilers

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